

BEFORE THE FEDERAL MARITIME COMMISSION

MSRF, INC.,

Complainant,

v.

DOCKET NO. 22-20

HMM Company, Ltd.,

Respondent.

COMPLAINANT, MSRF, INC.'s APPENDIX

TABLE OF CONTENTS

Exhibit Description	Page #'s
Exhibit 1 - David Reich's Declaration on behalf of MSRF, INC.	CX0001 – CX0006
Group Exhibit A – (CONFIDENTIAL) Service Contracts between MSRF and HMM	CX0007 – CX0201
Exhibit B - (CONFIDENTIAL) e-mail chains from 07/09/2021 – 08/2021	CX0202 – CX0204
Exhibit C - (CONFIDENTIAL) Marisol deposition exhibit M7	CX0205 – CX0235
Exhibit D - (CONFIDENTIAL) HMM Discovery Production to MSRF Bates Nos HMM0011027-0011036	CX0236 – CX0238
Exhibit E – E-mails MSRF Bates Nos. HMM0010738-0010742	CX0239 – CX0244
Exhibit F- Damages Worksheet for Motion for Summary Decision	CX0245 – CX0252
Exhibit 2- Deposition transcript of Chris McDonald 03/03/2023	CX0253 – CX0261
Exhibit 3- Deposition transcript of Sophia Hopman 03/03/2023	CX0262 – CX0272

EXHIBIT 1

DECLARATION

Before the
FEDERAL MARITIME COMMISSION
Washington, DC 20573
Docket No. 22-20
MSRF Inc. v. HMM Company Ltd.

**DECLARATION OF DAVID REICH IN SUPPORT OF
MOTION FOR SUMMARY DECISION**

DAVID REICH, hereby declares as follows:

1. I am the president, founder and majority shareholder for MSRF Inc. (“MSRF”), the Petitioner in the above-referenced action.
2. I have personal knowledge of the facts set forth herein, and am fully familiar with the proceedings in this case.
3. I submit this Declaration in support of MSRF’s Motion for Summary Decision.
4. MSRF and Respondent HMM entered into a service contract (SC US2124083) effective May 1, 2021. A true and correct copy of the service contract is attached hereto as **Group Exhibit A**.
5. When executed, the duration of the service contract was from May 1, 2021 through April 30, 2022. Group Ex. A, ¶ 8.
6. The service contract was kept in the ordinary and normal course of business and was agreed to and executed by both MSRF and HMM. Group Ex. A. I personally executed the contracts on behalf of MSRF.
7. The service contract was amended on fourteen occasions. Group Ex. A. Many of the amendments simply added different routes to the parties’ agreement.

8. The service contract provided for a minimum quantity commitment of 25 forty equivalent units (“FEUs”) from Asia to the U.S. during the initial contract period of May 1, 2021, through April 30, 2022. Group Ex. A, amendment 7. The service contract also identified the prices to be charged for various routes, including the prices for the FEUs.

9. After the negotiation of the initial contract, in July 2021, MSRF and Respondent negotiated an amendment for a peak season surcharge on the pricing for shipments through the end of August. A true and correct email chain from July 9, 2021 is attached as **Exhibit B**. As part of these negotiations, Respondent required MSRF to provide a forecast of shipments through August 2021. See Exhibit B MSRF Document Production Bates Numbers MSRF_HMM_0003717-3718. The forecast was for 28 containers.

10. HMM agreed to provide 2 FEUs per week through the end of August 2021 at the set price of \$2,500.00. Ex. B. This was an increase from the initial contract because of a peak season surcharge.

11. The peak season surcharge based on these negotiations was adopted in amendment 7 to the service contract, Group Ex. A, Amendment 7. The execution of this amendment was based upon MSRF’s agreement to provide two FEUs per week until August 31, 2021.

12. MSRF would not have agreed to this surcharge if it was not going to receive two FEUs per week through August 31, 2021.

13. I am familiar with the email chain identified as Exhibit B as it was kept in the ordinary course of MSRF’s business.

14. Respondent provided only 9 containers through August 31, 2021. See **Exhibit C**, Marisol Deposition Exhibit M7. See also Group Ex. A, amendment 12, reflecting that the amount of FEUs provided was only 9 containers

15. MSRF suffered further damages through HMM's refusal to provide space when requested by MSRF. The documents produced in discovery are replete with examples of this refusal to deal. For example, in email correspondence between MSRF and HMM requesting bookings from Kolkata, India to Montreal, Canada, HMM refused to provide space. HMM Discovery Production to MSRF Bates Nos HMM0011027-0011036 attached hereto as **Exhibit D** and MSRF Bates Nos. HMM0010738-0010742 attached as **Exhibit E**. The emails were kept in the ordinary and normal course of business and I am familiar with these documents based upon a few of MSRF's business records.

16. I am familiar with the damages worksheet produced by MSRF to HMM, which is attached hereto as **Exhibit F**. This worksheet is based on business records maintained by MSRF in its normal course of business.

17. My understanding is that the underlying documents supporting the damages worksheet were produced in discovery to HMM and the worksheet has reference to the specific bates-numbers for the underlying business records.

18. The damages worksheet lists each shipment of goods by MSRF on which it paid freight costs in excess of those agreed by HMM in the service contract.

19. The damages worksheet also contains the costs related to shipments which were originally booked for movement from the port of lading to an inland destination in the United States, but the movement was terminated at the port of unloading because HMM was unable to provide rail movement to the original destination. These additional costs are for transloading and trucking charges which would not have been incurred if HMM had provided the necessary container space on its vessels as agreed to by HMM

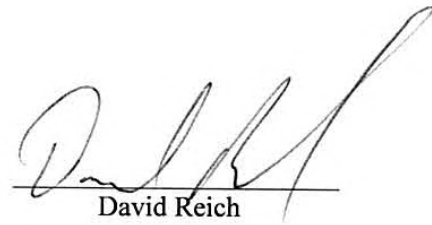
20. The total damages are \$1,768,328.68 on a total of 124 FEUs. This is an average of \$14,260.72 per FEU.

21. HMM provided MSRF with only 9 FEUs during the initial contract period.

22. As a result, MSRF's damages are calculated by taking \$14,260.72 (which is the average additional charges per FEU) and multiplying by 16 (which is the amount of FEUs HMM did not provide during the term). As a result, the damages sought by MSRF is \$228,171.52.

I declare that the foregoing is true and correct to the best of my knowledge and belief.

Dated: April 20, 2023



David Reich

GROUP EXHIBIT A SERVICE CONTRACT

GROUP EXHIBIT B

Group Exhibit C

Marisol Deposition

Exhibit M-7

Exhibit D

HMM0011027 - 0011036

Exhibit E –HMM Production

From: Laura Trometer [Laura.Trometer@hmm21.com]
Sent: 7/19/2021 8:01:58 PM
To: Rochi Mirasol [rmirasol@msrf.com]
CC: Chris McDonald [Chris.McDonald@hmm21.com]
Subject: RE: HMM Import activity

Rochi,

I will send inquiry and follow up with you tomorrow.

Thank you

Laura M. Trometer
Representative

Agent of HMM Co., Ltd. in USA

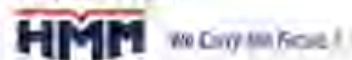
25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007

Office: 847.758.3700 / Direct 847-758-3728

Customer service: 877.7HYUNDAI

Laura.Trometer@hmm21.com

www.hmm21.com



Click on this link to take our

2021 Bi Annual Customer Service Survey

Dallas Regional Customer Service Center Main Numbers: 877-7-Hyundai (877-748-8632) or 468-522-4700

Outbound Export Customer Service Inquiries & bookings: MWEXPORT@HMM21.COM or go to www.hmm21.com and request booking on line (E booking) ebooking@hmm21.com

Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking <http://www.hmm21.com/cms/business/usa/information/newsletter/index.jsp> if you haven't done so already. Thank you!

All Freight Cashier issues:

Dallas Regional Customer Service Center at 468-522-4700

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

From: Rochi Mirasol [mailto:rmirasol@msrf.com]
Sent: Monday, July 19, 2021 1:50 PM
To: Laura Trometer <Laura.Trometer@hmm21.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: RE: HMM Import activity

Qingdao Gifu Packers and Weifang Kaimax

Rochi Mirasol

HMM0010738

CX_0240

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Laura Trometer <Laura.Trometer@hmm21.com>
Sent: Monday, July 19, 2021 8:15 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: RE: HMM Import activity

Good Morning Rochi ,

You have contracted PEK out of Qingdao thru 8/31.
HMM Qingdao should be honoring this.

Can you provide me any details on HMM rejection of vessel space out of Qingdao ?
Would your shipper have email back from HMM rejecting space ?
Who is your shipper attempting to make bookings out of Qingdao ?

Once I receive your reply I can report to upper Management .

Thank you ,

Laura M. Trometer
Representative
Agent of HMM Co., Ltd. in USA
35 Northwest Pointe, Suite 875, Elk Grove Village, IL 60007
Office: 847.758.3700 / Direct 847.758-3728
Customer Service: 877.7HYUNDAI
Laura.Trometer@hmm21.com
www.hmm21.com



Click on this link to take our
[2021 BI Annual Customer Service Survey](#)

Dallas Regional Customer Service Center Main Numbers: 877-7-Hyundai (877-749-8662) or 469-522-4700
Outbound Export Customer Service Inquiries & bookings: MWEXPORT@HMM21.COM or go to www.hmm21.com and request
booking on line (E booking) ebooking@hmm21.com

Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking ,
<http://www.hmm21.com/cms/business/usa/information/newsletter/index.jsp>
if you haven't done so already. Thank you!

All Freight Cashier issues:
Dallas Regional Customer Service Center at 469-522-4700
Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

HMM0010739

CX_0241

From: Rochi Mirasol [<mailto:rmirasol@msrf.com>]
Sent: Saturday, July 17, 2021 2:51 PM
To: Laura Trometer <Laura.Trometer@hmm21.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: Re: HMM Import activity

We are still have a problem getting a space

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Laura Trometer <Laura.Trometer@hmm21.com>
Sent: Friday, July 16, 2021 11:42 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: HMM Import activity

Rochi ... good day to you and happy Friday .

Please know that the below shipment is the only thing I show moving under your HMM Contract.
Please advise if your shippers overseas have experienced any problems securing vessel space out of Qingdao.

B/L TAOZ21693800
Container: KOCU4161587
Vessel just departed Qingdao ,
ETA Tacoma berth is 7/15 -- vessel delayed , ETA now showing as 7/21 into Tacoma
Booked as Chicago CY.

Thank you

Laura M. Trometer
Representative
Agent of HMM Co., Ltd. in USA
25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007
Office: 847-758-3700 / Direct: 847-758-3728
Customer Service: 877-71VILLAGE
Laura.Trometer@hmm21.com
www.hmm21.com



Click on this link to take our
[2021 Bi-Annual Customer Service Survey](#)

Dallas Regional Customer Service Center Main Numbers: 877-7-Hyundai (877-748-8652) or 469-822-4700

HMM0010740

CX_0242

Outbound Export Customer Service Inquiries & bookings: MWEXPORT@HMM21.COM or go to www.hmm21.com and request booking on line (E booking) ebooking@hmm21.com

Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking <http://www.hmm21.com/ems/business/usa/information/newsletter/index.jsp> if you haven't done so already. Thank you!

All Freight Cashier issues:

Dallas Regional Customer Service Center at 469-522-4700.

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

From: Laura Trometer

Sent: Tuesday, June 29, 2021 2:59 PM

To: 'Rochi Mirasol' <rmirasol@marf.com>; Chris McDonald <Chris.McDonald@hmm21.com>

Subject: RE: Xiamen

Rochi,

I see only one shipment out of Qingdao under your contract:

B/L: TAQ221693800

Container: KDCU4161587

Vessel: Just departed Qingdao.

ETA Tacoma berth is 7/15

Booked as Chicago CY

Thank you

Laura M. Trometer

Representative

Agent of HMM Co., Ltd. in USA

25 North West Pointe, Suite 675, Elk Grove Village, IL 60007

Direct: 847/758-3700 / Direct 847-758-3728

Customer Service: 877-711YLLQA1

Laura.Trometer@hmm21.com

www.hmm21.com



Click on this link to take our brief 2nd Half 2019 HMM Customer Service Evaluation Survey

Dallas Regional Customer Service Center Main numbers: 877-711YLLQA1 (877-743-8512) marked 523-6700

Outbound Export Customer Service Inquiries & bookings: MWEXPORT@HMM21.COM or go to www.hmm21.com and request booking on line (E booking) ebooking@hmm21.com

Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking <http://www.hmm21.com/ems/business/usa/information/newsletter/index.jsp> if you haven't done so already. Thank you!

All Freight Cashier issues:

Dallas Regional Customer Service Center at 469-522-4700.

Or via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

HMM0010741

CX_0243

From: Rochi Mirasol [<mailto:Rmirasol@msrf.com>]

Sent: Tuesday, June 29, 2021 2:50 PM

To: Chris McDonald <Chris.McDonald@hmm21.com>; Laura Trometer <Laura.Trometer@hmm21.com>

Subject: J W: Xiamen

Did you see any booking out of Xiamen to Chicago?

Rochi Mirasol

MSRF, LLC

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

* The information contained in this e-mail (including attachments) is confidential and is meant solely for the intended recipient. If you are not the intended recipient of this message please notify the sender and delete this e-mail and any attachments from your system. HMM employs comprehensive anti-virus software, but is not responsible for viruses or other malware associated with any email sent from the Company's systems. HMM recommends that recipients scan all file attachments. Note that any views or opinions reflected in this email are solely those of the author and do not necessarily represent those of the Company. In the event of any technical difficulty with this email and any attachments, please contact the sender or groupware@hmm21.com

HMM0010742

CX_0244

EXHIBIT F DAMAGES CALCULATION

Vendor	No. of Overcharged Containers	Charges > SC Rate	Transload Charges	Chassis Charges
QGP	111	\$ 1,361,306.06	\$ 213,095.38	\$ 89,123.28
WK	9	\$ 60,372.72	\$ 7,982.12	\$ 7,982.12
JVG	4	\$ 26,605.00	\$ 931.00	\$ 931.00
Total	124	\$ 1,448,283.78	\$ 222,008.50	\$ 98,036.40
Grand Total				\$ 1,768,328.68

ClarkHillS2443v43634

CX_0247

93	0010113-0010115	Qingdao Giftpackers	23-Aug-21	Qingdao, China	Middleborough, MA	TCU1336114	1 x 20'	24.60	1-Oct-21	New York, NY	05-Oct-21	Christmas Tree Shop	70025278 4231476	65971CT5	1,500	250	6	21GP1101-78	cancel date: 9/30-10/9	DELIVERED 10/26/21	1	\$	5,196	\$3,196 + BAF-\$1,000 + PEK-\$1,000	\$ 12,350.00	\$	5,196.00	\$	7,354.00	\$	243.14	\$	232.00	\$	242.58	\$	3,250.00	\$	325.00	RSI/Pegasus ONE	\$	4,292.72
94	0010116-0010119	Qingdao Giftpackers	26-Aug-21	Qingdao, China	AC Logistics Itasca, IL	FANU1515054	1 x 40'HQ	65.00	15-Sep-21	Vancouver Canada	25-Sep-21	MSRF	70024979	P44110WM	12,000	2,000	6	21GP1101-120		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 21,500.00	\$	7,241.00	\$	14,259.00	\$	3,125.25	\$	182.00	\$	572.02	\$	2,600.00	\$	250.00	Centrans Hapag Lloyd	\$	30,681.77
95	0010120-0010125	Qingdao Giftpackers	25-Aug-21	Qingdao, China	Montgomery, AL	TRHU4169955	1 x 40'HQ	66.50	29-Sep-21	Mobile, AL	13-Oct-21	BIG LOTS Montgomery	70025022 92014028	303458IG	3,432	572	6	21GP1101-88		DELIVERED 11/19/21	1	\$	6,726	\$4,726 + BAF-\$1,000 + PEK-\$1,000	\$ 18,575.00	\$	6,726.00	\$	11,849.00	\$	4,455.68	\$	302.00	\$	602.48	\$	-	\$	90.00	ONE Unipac/Max well	\$	26,754.62
96	0010126-0010128	Qingdao Giftpackers	25-Aug-21	Qingdao, China	Montgomery, AL	TGBU4657684	1 x 40'HQ	21.80	29-Sep-21	Mobile, AL	13-Oct-21	BIG LOTS Montgomery	70025022 92014028	P44108BIG	1,716	286	6	21GP1101-121		DELIVERED 11/11/21	1	\$	6,726	\$4,726 + BAF-\$1,000 + PEK-\$1,000	\$ 7,179.70	\$	6,726.00	\$	453.70	\$	845.87	\$	136.06	\$	196.04	\$	-	\$	-	ONE Unipac/Max well	\$	8,804.10
97	0010129-0010138	Qingdao Giftpackers	25-Aug-21	Qingdao, China	1st Logistics Alsip	MSDU9852970	1 x 40'HQ	55.40	28-Sep-21	Long Beach, CA	05-Oct-21	MSRF	70025307	PI45039CVS	11,376	2,844	4	21GP1101-108		RECEIVED	2	\$	9,500	\$7,500 + BAF-\$1,000 + PEK-\$1,000	\$ 50,835.00	\$	19,000.00	\$	31,835.00	\$	5,014.70	\$	344.00	\$	898.19	\$	5,500.00	\$	390.00	MSC Finigate/Oceanica	\$	67,728.39
98	0010139-0010141	Qingdao Giftpackers	26-Aug-21	Qingdao, China	Los Angeles, CA	KOCU5107929	1 x 40'HQ	61.50	13-Sep-21	Los Angeles, CA	13-Sep-21	HomeGoods	70025148 10	P441103HG	528	88	6	21GP1101-68		PICKED UP	2	\$	4,465	\$2,465 + BAF-\$1,000 + PEK-\$1,000	\$ 32,000.00	\$	8,930.00	\$	23,070.00	\$	1,263.14	\$	164.00	\$	1,127.17	\$	-	\$	-	HYUNDAI WIL CAN	\$	35,056.81
100	0010142-0010145	Qingdao Giftpackers	29-Aug-21	Qingdao, China	Los Angeles, CA	CXRU1620320	1 x 40'HQ	62.40	8-Sep-21	Los Angeles, CA	08-Sep-21	TJ /MA	70025268 60738244	PI65040TI	594	99	6	21GP1101-81		RECEIVED	1	\$	6,100	\$4,100 + BAF-\$1,000 + PEK-\$1,000	\$ 17,035.00	\$	6,100.00	\$	10,935.00	\$	2,330.30	\$	237.00	\$	413.46	\$	2,325.00	\$	-	CMA-CGM DOLPHIN	\$	25,757.76
101	0010146-0010148	Qingdao Giftpackers	29-Aug-21	Qingdao, China	AC Logistics	TRHU898202	1 x 40'HQ	51.02	20-Sep-21	Los Angeles, CA	30-Sep-21	MSRF	70025224	PI65029-6	2,316	386	6	21GP1101-51		RECEIVED	1	\$	6,100	\$4,100 + BAF-\$1,000 + PEK-\$1,000	\$ 25,600.00	\$	6,100.00	\$	19,500.00	\$	1,152.79	\$	252.00	\$	350.93	\$	2,100.00	\$	150.00	CMA-CGM EIMSKIP LOG	\$	29,838.22
102	0010149-0010152	Qingdao Giftpackers	28-Aug-21	Qingdao, China	Lebanon, TN	CSNU7579070	1 x 40'HQ	60.90	24-Sep-21	Seattle, WA Transload to TN	04-Oct-21	CRACKER BARREL	70025086 637467	PI41123CRACKER	13,200	2,200	6	21GP1101-72		DELIVERED 12/7/21	1	\$	5,196	\$3,196 + BAF-\$1,000 + PEK-\$1,000	\$ 14,565.00	\$	5,196.00	\$	9,369.00	\$	46.20	\$	222.00	\$	510.10	\$	2,150.00	\$	2,000.00	TopOcean Cosco	\$	27,455.80
104	0010153-0010157	Qingdao Giftpackers	26-Aug-21	Qingdao, China	1st Logistics Alsip, IL	MSMU7660234	1 x 40'HQ	58.80	10-Oct-21	Vancouver Canada	20-Oct-21	MSRF	70024997	PI65767	3,704	89	36	21GP1101-124		RECEIVED	4	\$	7,356	\$5,356 + BAF-\$1,000 + PEK-\$1,000	\$ 92,623.00	\$	29,424.00	\$	63,199.00	\$	10,668.89	\$	298.00	\$	2,471.72	\$	2,801.36	\$	143.00	MaxW/Intertan MSC	\$	114,924.15
105	0010158-0010160	Qingdao Giftpackers	2-Sep-21	Qingdao, China	AC Logistics Itasca, IL	STCU9120295	1 x 40'HQ	65.50	22-Sep-21	Portland, OR	06-Oct-21	MSRF	70025085	PI41103-6	10,002	1,667	6	21GP1101-55		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 20,620.00	\$	7,241.00	\$	13,379.00	\$	317.71	\$	222.00	\$	766.94	\$	2,300.00	\$	800.00	MaxW/Intertan SLM	\$	25,594.15
106	0010161-0010163	Qingdao Giftpackers	1-Sep-21	Qingdao, China	Tampa, FL	ZCSU7641454	1 x 40'HQ	47.60	28-Sep-21	Tampa, FL	28-Sep-21	Beal's Outlet Beal's Dept/S	70025164 0947124	30345BO	3,600	600	6	21GP1101-94		Picked Up 11/10/2021	1		N/A		\$ 23,760.16	\$	-	\$	23,760.16	\$	2,393.38	\$	222.00	\$	504.12	\$	-	\$	-	ZIM LINE	\$	27,237.16
110	0010164-0010166	Qingdao Giftpackers	2-Sep-21	Qingdao, China	1st Logistics Alsip, IL	FDCU0394434	1 x 40'HQ	65.60	20-Sep-21	Vancouver Canada	28-Sep-21	MSRF	70025038	PI61235WM	8,100	900	9	21GP1101-100		RECEIVED	1	\$	7,356	\$5,356 + BAF-\$1,000 + PEK-\$1,000	\$ 22,500.00	\$	7,356.00	\$	15,144.00	\$	2,753.61	\$	202.00	\$	774.00	\$	684.36	\$	259.00	AM Global/Prime ONE	\$	30,071.08
111	0010167-0010169	Qingdao Giftpackers	30-Aug-21	Qingdao, China	Fairmont, VA	LYGU4051035	1 x 40'HQ	55.70	10-Oct-21	New York, NY	15-Oct-21	GABRIEL BROTHER	70025078 100 00890038 42	60643GABE	360	60	6	21GP1101-95	New Cancel date: 11/1-5	PICKED UP 11/16/21	1	\$	5,196	\$3,196 + BAF-\$1,000 + PEK-\$1,000	\$ 20,500.00	\$	5,196.00	\$	15,304.00	\$	2,471.13	\$	362.00	\$	632.84	\$	-	\$	-	H&H INT'L / POWERTRAN S Hapag-Lloyd	\$	26,558.47
112	0010170-0010172	Qingdao Giftpackers	2-Sep-21	Qingdao, China	Tacoma, WA	YMLU5417480	1 x 40'HQ	45.20	18-Sep-21	Tacoma, WA	18-Sep-21	SUPERVALU	70025225	PI650365UPER	1,536	256	6	21GP1101-60		IN - Transit	1	\$	4,465	\$2,465 + BAF-\$1,000 + PEK-\$1,000	\$ 16,050.00	\$	4,465.00	\$	11,585.00	\$	910.74	\$	307.00	\$	546.74	\$	-	\$	-	Wecan Int'l. YML	\$	18,181.98
113	0010173-0010175	Qingdao Giftpackers	1-Sep-21	Qingdao, China	AC Logistics Itasca, IL	RFCU5087626	1 x 40'HQ	60.20	17-Sep-21	Prince Rupert, Canada	24-Sep-21	MSRF	70025205	PI212358BB	5,004	834	6	21GP1101-110		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 22,500.00	\$	7,241.00	\$	15,259.00	\$	1,218.41	\$	212.00	\$	680.11	\$	716.32	\$	148.00	Masterpiece Int'l. Cosco	\$	26,717.41
114	0010176-0010178	Qingdao Giftpackers	2-Sep-21	Qingdao, China	Los Angeles, CA	OOCU8447275	1 x 40'HQ	62.60	29-Sep-21	Los Angeles, CA	02-Oct-21	HomeGoods	70025148 10 100623	PI65970HG	528	88	6	21GP1101-119		RECEIVED	1	\$	4,465	\$2,465 + BAF-\$1,000 + PEK-\$1,000	\$ 15,065.00	\$	4,465.00	\$	10,600.00	\$	36.78	\$	222.00	\$	440.41	\$	-	\$	-	Topocean OCOL	\$	16,131.69
115	0010179-0010181	Qingdao Giftpackers	4-Sep-21	Qingdao, China	Los Angeles, CA	EISU8342801	1 X 40'HQ	63.20	26-Sep-21	Los Angeles, CA	26-Sep-21	HomeGoods	70025126 10 100623	60640HG	426	71	6	21GP1101-80		PICKED UP	1	\$	4,465	\$2,465 + BAF-\$1,000 + PEK-\$1,000	\$ 16,200.00	\$	4,465.00	\$	11,735.00	\$	49.73	\$	152.00	\$	554.24	\$	-	\$	-	Maxwide/Intertan Evergreen	\$	17,426.89
116	0010182-0010185	Qingdao Giftpackers	4-Sep-21	Qingdao, China	Lebanon, TN	CXDU2346945	1 x 20'	11.10	20-Sep-21	Savannah, GA	Tacoma, WA	Cracker Barrel	70025086 637467	PI41123Cracker	1,800	300	6	21GP1101-126		DELIVERED 10/29/21	1	\$	6,196	\$4,196 + BAF-\$1,000 + PEK-\$1,000	\$ 11,700.00	\$	6,196.00	\$	5,504.00	\$	966.34	\$	232.00	\$	307.51	\$	5,000.00	\$	2,000.00	Wilcan Yangming	\$	23,083.35
121	0010186-0010190	Qingdao Giftpackers	5-Sep-21	Qingdao, China	1st Logistics Alsip, IL	QQIU8601958	1 x 40'HQ	69.30	20-Sep-21	Vancouver Canada	28-Sep-21	MSRF	70025038	PI61235WM	23,400	2,600	9	21GP1101-99		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 22,500.00	\$	7,241.00	\$	15,259.00	\$	1,653.72	\$	177.00	\$	-	\$	2,500.00	\$	300.00	UQU Shipping Hapag-Lloyd	\$	28,796.05
122	0010191-0010193	Qingdao Giftpackers	10-Sep-21	Qingdao, China	AC Logistics Itasca, IL	SMCU1049752	1 x 40'HQ	55.50	3-Oct-21	Portland, Oregon	16-Oct-21	MSRF	70025234	PI11110-6	2,592	432	6	21GP1101-102		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 22,550.00	\$	7,241.00	\$	15,309.00	\$	3,224.91	\$	252.00	\$	760.54	\$	2,300.00	\$	250.00	RSI / Pegasus SML	\$	51,887.45
123	0010194-0010197	Qingdao Giftpackers	12-Sep-21	Qingdao, China	Durant, OK	TRHU4551172	1 x 40'HQ	65.30	13-Oct-21	Long Beach, CA	23-Oct-21	BIG LOTS Durant	70025022 92014038	303458IG	4,056	676	6	21GP1101-90	12/3 - CANCELLED	RECEIVED 1/19/22	1	\$	7,201	\$5,201 + BAF-\$1,000 + PEK-\$1,000	\$ 17,565.00	\$	7,201.00	\$	10,364.00	\$	2,294.12	\$	307.00	\$	523.78	\$	6,000.00	\$	93.42	Wan Hai TopOcean	\$	34,160.82
124	0010198-0010202	Qingdao Giftpackers	12-Sep-21	Qingdao, China	Apple Valley, CA	CLHU9008787	1 x 40'HQ	63.70	??	Long Beach, CA	05-Dec-21	BIG LOTS Apple Valley, CA	70025022 92014027	303458IG	4,296	716	6	21GP1101-91	12/3 - CANCELLED	RECEIVED 1/24/22	1		N/A		\$ 17,500.00	\$	-	\$	17,500.00	\$	2,931.14	\$	272.00	\$	524.70	\$	6,000.00	\$	9,000.00	Hapag Lloyd Salfground / NIK	\$	36,836.80
125	0010203-0010206	Qingdao Giftpackers	9-Sep-21	Qingdao, China	AC Logistics Itasca	SMCU1122180	1 x 40'HQ	62.80	22-Sep-21	Vancouver Canada	04-Oct-21	MSRF	70025209	PI609788BB	15,000	2,500	6	21GP1101-109		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 22,500.00	\$	7,241.00	\$	15,259.00	\$	1,860.09	\$	187.00	\$	512.46	\$	553.19	\$	472.00	Radiant Overseas SML Line	\$	26,627.24
126	0010207-0010209	Qingdao Giftpackers	10-Sep-21	Qingdao, China	AC Logistics Itasca	SMCU1169974	1 x 40'HQ	74.00	28-Sep-21	Long Beach, CA	23-Oct-21	MSRF	70025038	PI61235WM	14,679	1,631	9	21GP1101-101		RECEIVED	1	\$	7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 22,550.00	\$	7,241.00	\$	15,309.00	\$	2,309.60	\$	235.00	\$	953.87	\$	2,300.00	\$	250.00	Pegasus/RSI SML Line	\$	28,830.97

[illegible]

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs	Shipper Inv#	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis	Carrier	Total FRT Expenses
30	0010361-0010365	Weifang Kaimax	31-Jul-21	Qingdao, China	Columbus, OH	FSCU85652	1 x 40'HQ	40.40	25-Aug-21	Los Angeles, CA	02-Sep-21	BIG LOTS Columbus, OH	70025023 92014016	PI7104781G	4,716	393	12	22101D15E	10/12/21 DELIVERED	1	\$ 6,366	\$4,366 + BAF-\$1,000 + PEK-\$1,000	\$ 11,726.85	\$ 6,366.00	\$ 5,360.85	\$ 2,280.05	\$ 153.87	\$ 350.32	\$ -	\$ -	ONE Unipac	\$ 15,336.38
31	0010366-0010369	Weifang Kaimax	1-Aug-21	Qingdao, China	Apple Valley, CA	CAIU76950	1 x 40'HQ	33.70	25-Aug-21	Los Angeles, CA	25-Aug-21	BIG LOTS Apple Valley, CA	70025023 92013993	PI7104781G	4,284	357	12	22101D15A	9/30/21 DELIVERED	1		N/A	\$ 10,776.84	\$ -	\$ 10,776.84	\$ 756.02	\$ 115.15	\$ 329.95	\$ -	\$ -	YML Topocean	\$ 12,428.48
37	0010370-0010372	Weifang Kaimax	2-Sep-21	Qingdao, China	4C Logistics Itasca, IL	DRYU60893	1 x 40'HQ	69.36	20-Sep-21	Vancouver, Canada	29-Sep-21	MSRF	70025049	PI65927-6	4,200	700	6	22101D28	RECEIVED	1	\$ 7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 18,110.00	\$ 7,241.00	\$ 10,869.00	\$ 690.69	\$ 287.00	\$ 876.42	\$ 718.82	\$ 296.00	RSL/Pegasus ONE	\$ 22,826.50
38	0010373-0010376	Weifang Kaimax	20-Jul-21	Qingdao, China	Montgomery, AL	TRHU48954	1 x 40'HQ	35.50	14-Aug-21	Los Angeles, CA	24-Aug-21	BIG LOTS Montgomery	70025023 92014013	PI7104781G	4,380	365	12	22101D15B	DELIVERED	1	\$ 6,726	\$4,726 + BAF-\$1,000 + PEK-\$1,000	\$ 10,900.24	\$ 6,726.00	\$ 4,174.24	\$ 1,412.40	\$ 102.27	\$ 295.50	\$ -	\$ -	OOCL Topocean	\$ 12,757.04
39	0010377-0010380	Weifang Kaimax	18-Jul-21	Qingdao, China	Tremont, PA	TGBU80398	1 x 40'HQ	41.00	20-Aug-21	New York, NY	25-Aug-21	BIG LOTS Tremont	70025023 92014014	PI7104781G	5,040	420	12	22101D15C	RECEIVED	1		n/a	\$ 8,683.12	\$ -	\$ 8,683.12	\$ 911.89	\$ 154.73	\$ 327.44	\$ 1,263.30	\$ 287.26	Evergreen Pegasus/RSL	\$ 12,109.23
40	0010381-0010384	Weifang Kaimax	23-Jul-21	Qingdao, China	Durant, OK	CICU22574	1 x 40'HQ	32.00	12-Aug-21	Los Angeles, CA	25-Aug-21	BIG LOTS Durant	70025023 92014015	PI7104781G	3,516	293	12	22101D15D	DELIVERED	1	\$ 7,201	\$5,201 + BAF-\$1,000 + PEK-\$1,000	\$ 11,095.48	\$ 7,201.00	\$ 3,894.48	\$ 1,216.77	\$ 76.86	\$ 281.30	\$ -	\$ -	CMA-CGM Unipac	\$ 12,937.19
43	0010385-0010387	Weifang Kaimax	25-Aug-21	Qingdao, China	Montgomery, AL	TGBU46576	1 x 40'HQ	34.60	6-Oct-21	Mobile, AL	13-Oct-21	BIG LOTS Montgomery	70025023 92014028	PI7104781G	5,868	489	12	22101D15G	DELIVERED	1	\$ 6,726	\$4,726 + BAF-\$1,000 + PEK-\$1,000	\$ 11,395.30	\$ 6,726.00	\$ 4,669.30	\$ 2,239.83	\$ 215.94	\$ 311.14	\$ -	\$ -	ONE Unipac/MW	\$ 14,870.78
62		Weifang Kaimax	24-Sep-21	Qingdao, China	Durant, OK	WHSU6102	1 x 40'HQ	39.50	5-Oct-21	Los Angeles, CA	15-Oct-21	BIG LOTS Durant	70025023 92014030	PI6045BIG	2,886	481	6	22101D15I	DELIVERED	1	\$ 7,201	\$5,201 + BAF-\$1,000 + PEK-\$1,000	\$ 11,336.89	\$ 7,201.00	\$ 4,135.89	\$ -	\$ -	\$ -	\$ -	\$ -	TopOcean Wan Hai Line	\$ 11,397.19
65	0010388-0010393	Weifang Kaimax	2-Oct-21	Qingdao, China	4C Logistics Itasca, IL	KOCU43709	1 x 40'HQ	41.70	21-Oct-21	Los Angeles, CA	31-Oct-21	MSRF	70025049	PI65926-17	4,200	700	6	22101D68	RECEIVED	1	\$ 7,241	\$5,241 + BAF-\$1,000 + PEK-\$1,000	\$ 15,050.00	\$ 7,241.00	\$ 7,809.00	\$ 1,490.00	\$ 242.00	\$ 372.18	\$ 6,000.00	\$ 540.00	RSL/Pegasus Hyundai	\$ 27,271.64
9																							\$ 60,372.72						\$ 7,982.12		\$ 1,123.26	

Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATI ON	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs	Shipper Inv#	COMMENT S	Delivery Status	No. of Containers	Total Hyundai Rate	Hyundai SC Rate	Freight Charges
0010407-0010409	JV Gokal	26-Jun-21	Kolkata, India	4C Logistics Itasca, IL	TCNU1731 324	1 x 40'	49.58	15-Aug-21	Halifax, Canada	31-Aug-21	MSRF	70025024	14801	510	85	6	521220026		RECEIVED	1	\$ 8,454.00	\$6,454 + BAF- \$1,000 + PEK-\$1000	\$ 9,550.00
0010410-0010411	JV Gokal	6-Jul-21	Kolkata, India	4C Logistics Itasca, IL	TCNU3475 263	1 x 40'	46.85	17-Aug-21	Norfolk, VA	21-Aug-21	MSRF	70025189	14821	2,340	390	6	521220031		RECEIVED	1	\$ 8,454.00	\$6,454 + BAF- \$1,000 + PEK-\$1000	\$ 9,580.00
0010415-0010416	JV Gokal & Co. Pvt.	9-Sep-21	Kolkata, India	4C Logistics Itasca, IL	FSCU8231 710	1 x 40' HQ	54.15	30-Oct-21	Charleston, SC	5-Nov-21	MSRF	70025420	14804	6,300	525	12	520220084		RECEIVED	1	\$ 8,356.00	\$6,356 + BAF- \$1,000 PEK-\$1,000	\$ 26,300.00
0010417-0010418	JV Gokal	7-Dec-21	Kolkata, India	4C Logistics Itasca, IL	UACU3571 000	1 X 20'	30.41	13-Jan-22	Norfolk, VA	23-Jan-22	MSRF	70025476	14820	8,502	1,417	6	521220104		RECEIVED	1	\$ 8,391.00	\$65,913 + BAF-\$900 PEK-\$900	\$ 14,830.00

Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRUCK Rate	Chassis	Carrier	Total FRT Expenses
\$ 8,454.00	\$ 1,096.00	\$ 89.34	\$ 227.00	\$ 354.33	\$ 771.82	\$ 310.00	Hapag-Lloyd	\$ 11,938.99
\$ 8,454.00	\$ 1,126.00	\$ 150.65	\$ 264.50	\$ 411.22	\$ 662.19	\$ 421.00	CMA-CGM	\$ 11,940.15
\$ 8,356.00	\$ 17,944.00	\$ 205.16	\$ 227.00	\$ 691.82	\$ 2,300.00	\$ 200.00	Hapag Lloyd	\$ 4,221.48
\$ 8,391.00	\$ 6,439.00	\$ 109.72	\$ -	\$ 377.21	\$ 147.00	\$ -	Blue Mountain/ Transcon Hapag Lloyd	\$ 15,676.43
	\$ 26,605.00				\$ 3,881.01	\$ 931.00		

EXHIBIT 2

EXHIBIT 3